

5. Excessive or inadequate damages
6. Insufficiency of the evidence to justify the verdict or other decision, or the verdict or other decision is against law.
7. Error in law, occurring at the trial and excepted to by the party making the application.

CCP § 657.

Defendants Notice of Motion identifies three grounds for a new trial; specifically, excessive or inadequate damages, insufficient evidence and an error in law. CCP § 657(5-7). Defendants argue that the Court misinterpreted or misapplied the 1996 Stipulated Judgment and that the prior 1924 and 1935 Decrees provided Defendants with the right to enter Plaintiffs property. Based on that purported right of entry, Defendants contend that it was an error in law to find a trespass. The Court's May 30, 2026, Judgment incorporated a prior ruling on Plaintiffs' Motion for Partial Judgment Notwithstanding the Verdict. That ruling addressed the prior Decrees and Stipulated Judgment and found that the document did not give Defendants the right to construct new irrigation and that Defendants had "no authority to add structures such as log or riffle and they had no authority to enter and damage Plaintiffs' property in whatever way they choose as long as it related to their irrigation." Defendants provided no authority to show that the documentations were misinterpreted by the Court. Accordingly, Defendants have failed to meet their burden to show an error in law. An independent review of the Decrees and Stipulated Judgment also does not show there was any error in law in the Court's prior interpretation. As for the issues of excessive damages or insufficient evidence, Defendants did not address either issue in their memorandum of points and authorities. The Court finds that Defendants have not established an error in law, excessive damages or insufficient evidence that would warrant a new trial.

Sanctions. In their opposition, Plaintiffs request sanctions in the amount of \$3,045 pursuant to CCP § 128.5. Plaintiffs take the position that the sanctions are warranted based on the frivolous nature of the motion. While the Court ultimately disagrees with Defendants' position, there has been an insufficient showing that the motion was frivolous or made in bad faith to warrant sanctions. The request for sanctions is denied.

The motion is **DENIED**. A proposed order was lodged with the Court which will be modified to reflect the denial.

SCHJOTH, ET AL. VS. LYNCH
CASE NUMBER: 25CV-0208162

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on April 6, 2026 to Plaintiffs Timothy James Schjoth, Zachary Kirk, and Christopher Schjoth and counsel Law Offices of Willoughby & Associates for failure to timely seek entry of default as required by CRC 3.110(g). "If a responsive pleading is not served within the time limits specified in this rule and no extension of time has been granted, the plaintiff must file a request for entry of default within 10 days after the time for service has elapsed. The court may issue an order to show cause why sanctions should not be imposed if the plaintiff fails to timely file the request for the entry of default." CRC 3.110(g). Proof of Service of Summons was filed on October 14, 2025 reflecting service on Defendant Nicholas David Lynch on October 1, 2025. Default should have been entered over six months ago. Plaintiff did not file a written response.

Without sufficient excuse for the delay, sanctions are imposed in the amount of \$250 against Plaintiff and counsel. The clerk is directed to prepare a separate Order of Sanctions. **An appearance is necessary on today's calendar to explain the delay.**